

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF SUFFOLK-----X
DIANE C. DESOUSA and
THOMAS E. DESOUSA,

Index No.600371/2021

Plaintiffs,

**AFFIDAVIT OF
PATRICIA SCHNEIDER**

-against-

Justice Assigned:
Hon. Frank TinariRICHARD A. CALVAGNO II and
PATRICK J. KARCHER,

Motion #002

Defendants.
-----XSTATE OF NEW YORK)
)ss.:
COUNTY OF SUFFOLK)**PATRICIA SCHNEIDER**, being duly sworn, deposes and says:

1. I have personal knowledge of and/or have directly observed events relating to the above-entitled action.

2. I am currently 73 years old and reside at 16 Avery Way, Bluepoint, New York 11772 with my husband, James Veneziano.

3. I previously lived at 321 Grand Central Avenue, Amityville, New York 11701.

4. After over 20 years, my husband and I decided to move to Bluepoint, New York because of the constant disruption and obnoxious behavior of our neighbor, Richard A. Calvagno II ("Calvagno").

5. In addition to the unreasonable and excessive noise caused by Calvagno starting, idling, and revving his high-performance Dodge Charger Hellcat each morning between 6:00 a.m. and 7:00 a.m., which startled us awake each morning, I was also gravely concerned by the reckless way Calvagno operated his vehicle.

6. On several occasions, including, but not limited to, January 4, 2022, March 9,

2022, March 10, 2022, March 26, 2022, I observed Calvagno operating his vehicle at an extremely high and dangerous rate of speed on our block. There are numerous families and children that live in our neighborhood and walk in the street as there are no sidewalks. I was terrified that Calvagno was going to hit or even worse, kill someone, because of his recklessness. It was even more disturbing that the police seemed powerless to stop him.

7. I complained to Thomas DeSousa and Diane DeSousa about his behavior as well as other neighbors, who agreed that Calvagno was a danger and a disruption to our neighborhood.

8. Ultimately, my husband and I had enough of the disruption and decided to move from what had been our home for the last 20 years. We also knew that Thomas DeSousa initially attempted to resolve these issues directly with Calvagno, but this attempt just caused Calvagno to escalate his behavior further. Therefore, it was easier and less disruptive for us to move than having to confront Calvagno.

I, Patricia Schneider, affirm this 6th day of June, 2024, under the penalties of perjury under the laws of New York, which may include a fine or imprisonment, that the foregoing is true, and I understand that this document may be filed in an action or proceeding in a court of law.

*Sworn to before
me this 6th day of JUNE, 2024*

JOHN N. CUOMO
Notary Public, State of New York
Qualified in Suffolk County
No. 02506259242
My Commission Expires May 1, 2024
[Signature]

[Signature]
Patricia Schneider